

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

----- X
DHIRAJ ARORA,

Plaintiff,

-against-

CITY OF NEW YORK and POLICE OFFICER BLAIR
BUTLER, (SHIELD # 12159), individually,

Defendants.
----- X

SUMMONS

Plaintiff designates
New York County as the
place of trial

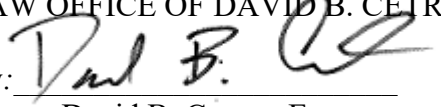
Basis of venue
pursuant to CPLR § 504(3)

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorney an answer to the complaint in this action within twenty days after the service of this summons, exclusive of the day of service, if this summons is personally delivered to you within the State of New York, or within thirty days after service is complete, if this summons is not personally delivered to you with the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is cause of action arose in New York County, New York.

Dated: May 16, 2023
New York, New York

LAW OFFICE OF DAVID B. CETRON, P.C.

By: 

David B. Cetron, Esq.
Attorney for Plaintiff
49 West 37th Street, 7th Floor
New York, New York 10018
(212) 616-3833
DCetron@Cetronlaw.com

DEFENDANTS' ADDRESS:
City Of New York
100 Church Street
New York, NY

Police Officer Blair Butler
Strategic Response Group 1
Manhattan

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CITY OF NEW YORK and POLICE OFFICER BLAIR
BUTLER, (SHIELD # 12159), individually,Defendants.
----- X**VERIFIED COMPLAINT**

Plaintiff, DHIRAJ ARORA, by his attorneys the LAW OFFICE OF DAVID B. CETRON,
P.C., as and for his complaint against Defendants, alleges as follows:

PARTIES, JURISDICTION and VENUE

1. Plaintiff is a natural person who resided at 94 Schindler Court, Sommerset, New Jersey 08873, at the time he was assaulted, battered and injured by Defendant.
2. All actions complained of herein occurred in New York County, New York.
3. Defendant, CITY OF NEW YORK ("NYC"), is a municipality within the State of New York, which includes New York County. Defendant NYC owns, operates, manages, directs, maintains and controls a police department, the New York City Police Department ("NYPD"), which is an agency of the municipality and employs Defendant POLICE OFFICER BLAIR BUTLER (SHIELD # 12159).
4. Upon information and belief, Defendant, POLICE OFFICER BLAIR BUTLER (SHIELD # 12159), ("Defendant BUTLER") was at all relevant times a police officer with the NYPD assigned to the 7th Precinct¹, located in New York County, New York. All actions by

¹ Transferred to the Strategic Response Group I Manhattan in April 2022.

Defendant BUTLER complained of herein were taken in the course of her employment and under color of law. Defendant BUTLER is being sued in both her individual and official capacities.

5. At all times relevant hereto and in all their actions describe herein, Defendant BUTLER was acting under color of statutes, ordinances, regulations, policies, customs and usages of the NYC and NYPD pursuant to her authority as employee, servant, and agent of the NYC and NYPD within the scope of employment and incidental to her otherwise lawful duties and functions as employee, servant, agent, and police officer.

6. NYC was responsible for the hiring, training, supervision, discipline retention and promotion of the police officer, and/or employee of the NYPD. They are being sued both in their individual and official capacity.

7. This court has jurisdiction over this action as cause of action arose in New York County, New York and the damages sought exceed the maximum jurisdiction of all lower courts.

8. Venue is properly laid in this court as all relevant events occurred in New York County.

9. A Notice of Claim was timely served upon Defendant NYC on May 16, 2022, within ninety days of February 22, 2022, the statutory date of accrual for the State claims herein.

10. At least 30 days have elapsed since said demand and or claim upon which this action is in part predicated was presented to NYC for adjustment and NYC has neglected and/or refused to adjust and/or make payment.

11. The instant action is commenced within one year and ninety days of the date of accrual of all causes of action.

FACTS GIVING RISE TO THE CAUSES OF ACTION

12. On February 22, 2022, at approximately 11:26 pm., Plaintiff was inside the Emergency Department, Ambulance Triage area of Mount Sinai Beth Israel Hospital, located at First Avenue and East 16th Street, New York County, New York.

13. At that time, Plaintiff was present therein seeking treatment for a mental health condition and was in the custody of Defendant BUTLER.

14. Plaintiff was seated in the Ambulance Triage area, rear handcuffed and his feet were shackled causing him to be physical helpless.

15. Without cause or legal justification and in violation of NYPD procedures, Defendant BUTLER struck Plaintiff about the head and ear with her fist and/or an object.

16. As a result of the illegal and unjustified physical contact, Plaintiff suffered multiple injuries including a laceration to the head/ear area together with a bruise to his head.

17. This laceration required approximately nine sutures to close.

18. As a result of the actions of Defendant BUTLER in striking Plaintiff, Plaintiff has a permanent scar to his head/ear area.

19. Plaintiff suffered and continues to suffer physical injuries, emotional distress, mental anguish and the loss of his constitutional rights as a result of this incident.

20. As a result of the severity of wrongdoing and the willfulness, wantonness, recklessness and/or maliciousness evidenced by Defendant BUTLER's actions, any damage award should include punitive damages in an amount appropriate to punish the individually named Defendant in light of the significant damages incurred by the Plaintiff.

FIRST CAUSE OF ACTION
(Excessive Force - State Claim)

21. Paragraphs 1 through 20 are incorporated herein by reference pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

22. By striking Plaintiff with her fist and/or an object without legal cause or justification and in violation of NYPD procedure, Plaintiff was subjected to the use of excessive force by Defendant BUTLER in the performance of her police duties.

23. By reason thereof, Defendant BUTLER caused Plaintiff to suffer physical injuries, emotional distress, mental anguish and the loss of his constitutional rights.

24. Because Defendant BUTLER acted within the scope of her duties as a member of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

SECOND CAUSE OF ACTION
(Excessive Force - §1983)

25. Paragraphs 1 through 24 are incorporated herein by reference pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

26. By striking Plaintiff with her fist and or and object without legal cause or justification, Plaintiff was subjected to the use of excessive force by Defendant BUTLER in the performance of her police duties in violation of the Eighth and Fourteenth Amendment of the United States Constitution. Specifically, the Due Process right to be free from the use of excessive force and cruel and unusual punishment under color of law.

27. By reason thereof, Defendant BUTLER violated 42 U.S.C. §1983 and caused Plaintiff to suffer physical injuries, emotional distress, mental anguish and the loss of his

constitutional rights.

**THIRD CAUSE OF ACTION
(Assault – State Claim)**

28. Paragraphs 1 through 27 are incorporated herein by reference pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

29. In striking Plaintiff about the head/ear with her fist and/or an object, Plaintiff was assaulted and battered by Defendant BUTLER.

30. The assault and battery upon the Plaintiff, DHIRAJ ARORA, was instigated and committed by Defendant BUTLER without just provocation.

31. As a result of the assault and battery committed by Defendant BUTLER. the Plaintiff, was seriously and permanently injured, and was caused to suffer and will continue to suffer great physical and mental pain.

32. Because Defendant BUTLER acted within the scope of her duties as a member of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

**FOURTH CAUSE OF ACTION
(Assault – §1983)**

33. Paragraphs 1 through 32 are incorporated herein by reference pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

34. In striking Plaintiff about the head/ear, Plaintiff was assaulted and battered by Defendant BUTLER.

35. The aforementioned assault and battery upon the plaintiff, DHIRAJ ARORA, was instigated and committed by Defendant BUTLER without just provocation.

36. As a result of the assault and battery committed by Defendant BUTLER. the Plaintiff, was seriously and permanently injured, and was caused to suffer and will continue to

suffer great physical and mental pain.

37. By striking Plaintiff with her fist and/or an object without legal cause or justification, Plaintiff was assaulted and battered by Defendant BUTLER in the performance of her police duties in violation of the Eighth and Fourteenth Amendment of the United States Constitution. Specifically, the Due Process right to be free from the use of excessive force and cruel and unusual punishment under color of law.

38. By reason thereof, Defendant BUTLER violated 42 U.S.C. §1983 and caused Plaintiff to suffer physical injuries, emotional distress, mental anguish and the loss of his constitutional rights.

**FIFTH CAUSE OF ACTION
(Tort/Negligence – State Claim)**

39. Paragraphs 1 through 38 are incorporated herein by reference pursuant to CPLR §3014 with the same force and effect as if pleaded separately.

40. Plaintiff, rear handcuffed and in shackles, was physically helpless and was owed a duty of care by Defendant BUTLER in whose custody he was present.

41. Defendant BUTLER breached this duty owed to Plaintiff by failing to exercise due care in securing the physical safety of Plaintiff and preventing injury to Plaintiff.

42. Defendant BUTLER's physical contact with the Plaintiff's head/ear area, caused physical injury to Plaintiff including a laceration requiring sutures.

43. Defendant BUTLER's physical contact with the Plaintiff and failure to exercise due care was the proximate cause of the physical injuries sustained by Plaintiff.

44. As a result of the failure to exercise due care by Defendant BUTLER, the Plaintiff, was seriously and permanently injured, and was caused to suffer and will continue to suffer great physical and mental pain.

45. Because Defendant BUTLER acted within the scope of her duties as a member of the NYPD, Defendant CITY is also liable under this claim based on a theory of *respondeat superior*.

WHEREFORE, the Plaintiff demands judgment against Defendants as follows:

- i) On the first cause of action, actual and punitive damages in an amount to be determined at trial;
- ii) On the second cause of action, actual and punitive damages in an amount to be determined at trial;
- iii) On the third cause of action, actual and punitive damages in an amount to be determined at trial;
- iv) On the fourth cause of action, actual and punitive damages in an amount to be determined at trial;
- v) On the fifth cause of action, actual and punitive damages in an amount to be determined at trial;
- vi) Such other relief as the Court deems just and proper.

Dated: New York, New York
May 16, 2023

LAW OFFICE OF DAVID B. CETRON, P.C.

By: 

David B. Cetron, Esq.
49 West 37th Street, 7th Floor
New York, New York 10018
212-616-3833
DCetron@Cetronlaw.com

ATTORNEY'S VERIFICATION

STATE OF NEW YORK
COUNTY OF NEW YORK: ss

I, the undersigned, am an attorney admitted to practice in the courts of New York State,
and say that:

I am a member of the firm of Law Office of David B. Cetron, P.C. the attorneys of record,
for Plaintiff.

I have read the annexed COMPLAINT and know the contents thereof and the same are true
to my knowledge, except those matters therein which are stated to be alleged on information and
belief, and as to those matters, I believe them to be true. My belief, as to those matters therein not
stated upon knowledge is based upon the following:

Interviews and/or discussions with the Plaintiff, review of video recordings of the incident
in question and records, papers and/or documents in the file.

The reason I make this affirmation instead of Plaintiff is because said Plaintiff resides
outside of the county from where your deponent maintains his office for the practice of

Dated: May 16, 2023
New York, NY



DAVID B. CETRON,